

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



May 14, 2018

The Honorable John Stephen Graham
Judge of the Superior Court, County of Marin
Marin County Superior Court
Criminal Clerk's Office
Post Office Box 4988
San Rafael, CA 94913-4988

FILED

AUG 13 2018

JAMES M. KIM, Court Executive Officer
MARIN COUNTY SUPERIOR COURT
By: J. Kim, Deputy

Re: Joey Mason
CDC No: P63481
Case No: SC108369A
Date of Sentence: December 3, 1999

Dear Honorable John Stephen Graham:

The purpose of this letter is to provide the court with authority to resentence Joey Mason pursuant to Penal Code Section 1170, subdivision (d)(1). Section 1170, subdivision (d) provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

A case review indicated inmate Mason has programmed well during his incarceration and should be commended for his willingness to attend classes and workgroups that will assist him in his transition back to society. It should be noted, that current and past incarcerations were related to an addiction to narcotics and alcohol. Inmate Mason has no rules violation reports relating to drugs or alcohol. Mason has been a member of Narcotics Anonymous since 2009 and has completed other courses relating to addiction including an intensive sixteen session treatment component conducted by the Addiction Recovery Counseling Program.

Having reviewed the enclosed documentation it appears that inmate Joey Mason's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentedenced.

Sincerely,


SCOTT KERNAN
Secretary